
Denver VC Primary School, Audit Report**Audit Date: 11 February 2020****Report: Year 2 visit 1****DPE: Linda Mortimer****School member: Headteacher – Louise Jones**

1. Visit details

Details highlighted at the time of the last visit were discussed. GDPR documents and policies were also reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 6 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 5.1 below).

The school is relatively small and currently provides education to 104 students. The Headteacher was appointed in September 2019 and was previously the Deputy Headteacher. The School Secretary has been on long term absence from September 2019 and it is hoped that she will return to her post in September 2020. The school has provided cover for this post, but not at the same FTE and this has meant that the Headteacher, new in post, has assumed increased responsibility.

Review actions recommended at time of previous visit – 13.2.19

Photos of students and details of their medical needs (Epi Pens) on display in staffroom: Following a risk assessment carried out by the previous Headteacher, it was decided that the health and safety of these students was greater than the risk posed by this information being on display and readily available. Since the visit on 13.2.19 the school has secured parental permission for display of their child's individual medical needs.

This practice will be reviewed by the end of the 2020 academic year when the Headteacher will make recommendations to either continue with this practice or alternatively, as advised by DPE, retain such information in closed files which are retained securely in the main office.

For this current practice to continue until the end of summer 2020, DPE advise that to mitigate some of the risk, this information should be stored securely at any such time when contractors are likely to be on site ie school holidays, weekends.

Confidential waste bags: Are now kept in a locked cupboard prior to collection.

Clear desk policy: Is fully understood by all staff and this is now being practiced throughout. Leave it and lock it – now practiced throughout the school. A system of internal audit takes place and the Headteacher will record any staff who leave their screens unlocked.

Audit walk and findings on 11.2.20

School Signing-in System: Denver uses an open book system. Risks are mitigated by archiving completed sign-in sheets. Staff are aware that visitors should not note if they are visiting a particular student.

GDPR Policy: DPE recommends that the school downloads the model policy available on Knowledge Bank and presents to Governors at their next meeting, for adoption.

Privacy Notice: This notice is not easily visible on the website. The school has adopted and published the NCC Privacy Statement.

Action: DPE recommends that the school downloads the DPE model Privacy Notice available on Knowledge Bank.

Action: The Privacy Notice should now include a more detailed list of third parties with whom the school share PII data. DPE will provide a list of examples of third parties for information.

Action: Visitors and parents should be signposted to the location of the school's Privacy Notice ie the school website. The school needs to provide a more detailed list of third parties with whom they share personal data. An example list will be provided.

Publication Scheme: This was discussed and examples will be provided for the school to make reference to. More guidance can be found under the News tab on the Knowledge Bank.

Staff Training: Three staff have completed GDPR 101 training. The school should now concentrate on all staff completing this module. A GDPR 20-minute refresher course will be available shortly on Knowledge Bank. DPE recommend that staff should refresh their training every 2 years.

Naming convention: Exercise books use both first name and surname. Displays and coat pegs use first names only.

Action: School to use first name only on exercise books from September 2020, or earlier is possible.

Laptops: Are encrypted, password protected and accounted for on a regular basis. All staff who work at home are aware of the Working Away from School Policy

Action: School to share the Working Away from School Policy with all staff. This can be managed via Compliance Manager on Knowledge Bank.

iPads: Are password protected and accounted for on a regular basis

Action: Check with IT Technician that iPads have 'Find my iPad' and 'Return to Factory Settings' installed.

Action: iPads should be cleansed of student images on a regular basis. EYFS upload student images to a secure area of the server on at least a weekly basis.

School Kitchen: Is operated by Norse Catering and all allergy information is kept securely.

First Aid Records and Medical Student Care Plans: Are stored securely.

School Server: The school needs to ensure there is a robust procedure for cleansing out of date information and student images from the school server.

Year 1 / 2 Classroom: Assessment folder was found on open bookshelf, please ensure that such information is kept securely.

Office: A folder containing details of student absence was found on desk, please ensure that this information is kept securely when the office is left unattended, at night and school holidays.

2. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

2.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

2.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

2.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

2.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

3. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

4. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

5. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

5.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

6. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>